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Provision of September 12, 2024
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the report of July 13, 2022;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTER Prof. Ginevra Cerrina Feroni;

PREMISED

1. The investigative activity.

With the report of July 13, 2022, Messrs. XX, XX, XX complained about the installation, on the external
wall owned by Mr. XX, of five cameras directed at the secondary doors and windows of the reporting
parties' residences that overlook the alley "XX," an area whose ownership is legally disputed.

With the request for information dated September 28, 2022, made pursuant to Article 157 of
Legislative Decree No. 196 of 2003, containing the Code regarding the protection of personal data, the
Office initiated the preliminary investigation, inviting the data controller to report on the matter raised
and simultaneously delegating the Special Privacy and Technological Fraud Protection Unit of the
Guardia di Finanza to carry out the appropriate checks on site.

During the inspection, carried out on November 22 and 23, 2022, the officers found that the video
surveillance system consists of 5 cameras, of which two were non-functional and three were
functional, placed externally, at the top of the wall of the building owned by the data controller.

The party stated that the system, installed to protect the safety of people and property, was installed in
2018 with two cameras that were only for detection, then disconnected and left on the wall as a
deterrent.

Following threats and assaults received from neighbors in July 2022 (Annex No. 15 of the minutes),
three cameras were installed that record images in case of movement of people or objects within the
range of action.

Regarding the field of view of the cameras, the party specified that the subject of the recording is "the
entire area of alley XX, up to what was previously the wall that delineated my property and has now
become the wall where my neighbors have illegally opened windows and doors. I reiterate that the
space of the alley has always been my property... I want to clarify that the residences of my neighbors
have their main access on the opposite side and have no right of access or passage in the so-called
alley XX."

Noting that the images were suitable for framing areas that, in fact, pertain to the reporting parties, the
Office, with the note of February 10, 2023, invited the data controller, pursuant to Article 157 of

Legislative Decree No. 196 of 2003, Code regarding the protection of personal data, to adopt appropriate measures to limit the field of view of the cameras, excluding from the recording areas that are not pertinent, such as the secondary doors and windows of the private residences of the reporting parties that overlook the alley.

In the response note of April 7, 2023, the data controller, while providing their observations, reiterated that the doors of the reporting parties were illegally constructed on the perimeter wall, that the area subject to recording constitutes exclusive property and is not encumbered by any rights in favor of third parties.

In the same communication, the purpose of property protection was also highlighted, and it was specified that the images are used by the judicial authority for the purposes of ascertaining the offenses in relation to which criminal proceedings are underway against one of the reporting parties. Finally, it was stated that, for technical reasons, the functional cameras, to which the images attesting to the subject of the recording can be traced, are only two.

2. The initiation of the sanctioning procedure.

With the communication of August 1, 2023, the Office notified the party of the act initiating the procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the recording of areas not directly pertinent, in particular, the doors and windows owned by third parties that are on the perimeter wall, and the related processing of personal data carried out in the absence of an appropriate legal basis, in violation of Articles 5, paragraph 1, letter a) and 6, paragraph 1, of the Regulation.

The party, informed by the Office of the possibility to submit defensive writings or documents in relation to the procedure against them, sent several communications reiterating the exclusive ownership of the area in question, specifying that: "the area of parcel No. 772 has never been and is not now, for the last 50 years and previously, a 'municipal alley,' but rather an area...

urban area of my exclusive property. The area is interclused, therefore, accessible exclusively through my adjacent residence and from the two gates locked with locks for which I hold the keys; the area in question is still today my exclusive property, the possession of which is qualified as such, according to the attached documentation (Attachment A) and well known to the neighbors. The complainants have access to the records related to the minutes of the case dated October 24, 2019, and are aware of the non-return of the area to the Municipality and the occurrence of secular Usucapion as well as the related request for a declaratory judgment (Attachment B).

3. The outcome of the investigation.

The processing of data carried out through a video surveillance system, if performed by individuals for personal and domestic purposes, falls within the causes of exclusion from the application of the data protection regulations referred to in Article 2, paragraph 2 of EU Regulation 2016/679.

In this regard, Recital 18 of the Regulation specifies that "activity of a purely personal or domestic nature" is considered to be that carried out without establishing a connection with a commercial or professional activity.

The use of video surveillance systems by individuals in areas of direct interest (such as those related to their own home and its appurtenances) is therefore generally considered excluded from the material scope of application of the data protection provisions, as it falls within the processing carried out for the exercise of activities of a purely personal and domestic nature.

This is provided that the scope of data communication does not exceed the family sphere of the data subject and that the images are not subject to communication to third parties or dissemination, and that the processing does not extend beyond the strictly relevant areas of the data subject, capturing images in common areas (including condominium types such as staircases, lobbies, parking lots), publicly accessible places (streets or squares), or areas belonging to third parties (gardens, terraces, doors, or windows belonging to third parties).

It follows that it is possible to install video recording systems without having to comply with the obligations set forth by the regulations on the protection of personal data, provided that the camera's field of view is limited to the areas of one's own relevance, possibly even through the activation of a function to obscure the exceeding parts.

Only in the presence of adequately documented actual risk situations (for example, from reports of

threats, thefts, or acts of vandalism), the data controller may, based on a legitimate interest, extend the recording of the cameras to public or publicly accessible areas immediately adjacent to those of relevance, provided that the public space recorded is only that immediately facing the entrances to one's own residence and that such extension is necessary and proportionate, in relation to the context, to ensure effective protection.

However, recordings of public or common spaces that do not have an immediate connection with the areas of relevance and recordings of areas belonging to third parties are not permitted.

In the case at hand, the investigation reveals that the recording also concerned areas beyond and belonging to third parties, in the absence of suitable lawful grounds. The processing of personal data subject to this proceeding is therefore found to be in violation of Article 5, paragraph 1, letter a) and Article 6 of the Regulation.

****4. Conclusions****

The circumstances presented during the inspection assessment, examined in their entirety, although deserving of consideration, do not allow for overcoming the observations notified by the Office, with the initiation of the proceeding, as it cannot be noted that the complainants would have unlawfully opened, according to the recipients of the complaint, doors and windows and that they would not have any right of access or passage in the aforementioned alley.

Aside from the civil law aspects regarding the legal ownership of the area and the related remedies available, even in the event of non-compliance with the regulations on views, the field of view of the cameras, as documented in the records, also affecting the facade where the doors and windows of the residence used by the complainants are located, effectively involves an area belonging to third parties, resulting in a processing of personal data that, therefore, not only does not fall within the exclusion scope of the application of the data protection regulations referred to in Article 2 of the Regulation but is also not supported by an adequate legal basis (Article 6 of the Regulation).

It is therefore deemed necessary to order the data controller, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to adopt appropriate measures aimed at limiting the camera's field of view so as to exclude from recording the doors and windows of the complainants' residence.

The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary sanction provided for by Article 83, paragraph 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the party through the video surveillance system, in violation of Articles 5, paragraph

1. letter a) and 6 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative monetary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is stated that for the assessment of the conduct the following have been taken into account:

- the conduct of the data controller, which consisted of extending the scope of video surveillance also concerning areas belonging to third parties;
- the circumstance that the party did not consider, despite the remarks, to modify the angle of view of the cameras.

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €400.00 (four hundred) for the violation of Article 5, paragraph 1, letter a) and Article 6 of the Regulation.

In this context, also considering the type of violation established, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante's regulation no. 1/2019, the publication of this provision on the Garante's website should proceed.

Finally, it is believed that the conditions referred to in Article 17 of regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Garante, are met.

ALL OF THE ABOVE CONSIDERED, THE Garante

pursuant to Articles 57, paragraph 1, letter a) and 83 of the Regulation, declares the unlawfulness of the processing carried out by Mr. XX (tax code: XX), in the terms outlined in the reasoning, for the violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation;

ORDERS

the party:

pursuant to Article 58, paragraph 2, letter d) of the Regulation, to bring the processing carried out through the video surveillance system into compliance by adopting the necessary measures to restrict the angle of view of the cameras, excluding from the footage the doors and windows of the complainants' residence and to provide adequately documented feedback pursuant to Article 157 of the Code, within 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for in Article 83, paragraph 5, letter e) of the Regulation;

to pay the sum of €400.00 (four hundred), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law no. 689/1981. It is stated that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to resolve the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree no. 150 of September 1, 2011, provided for the submission of the appeal as indicated below;

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation to pay the sum of €400.00 (four hundred) as an administrative monetary sanction for the violations indicated in this provision;

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante's regulation no. 1/2019, the publication of this provision on the Garante's website and believes that the conditions referred to in Article 17 of regulation no. 1/2019 are met.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree no. 150 of September 1, 2011, an appeal against this provision may be brought before the ordinary judicial authority, with an application filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the applicant resides abroad.

Rome, September 12, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei